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File No.: EXP202302458

RESOLUTION FOR FILING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On February 23, 2023, a complaint was filed with the Spanish Agency for Data Protection. The reasons for the complaint are as follows:

"My daughter got into a fight with another girl, both aged 12. This was recorded and almost instantly went viral on social media (without authorization), the other girl is a TikToker (XXXXXXXXXX with approximately 1,000,000 followers) who are indirectly promoting the topic to keep it current as they have monetized it, which is increasing their views and likes. Since that moment, my daughter cannot live a normal life; she is recognized on the street and is ridiculed and laughed at... it is a very difficult age, and I do not know to what extent this may affect her psychologically. To find the videos, you can search for XXXXXXXX. I request that these videos and the pages where they have been published be removed so that my daughter can soon regain her anonymity and her life. All of this is known to the Civil Guard and the juvenile prosecutor's office."

Along with the notification, screenshots and videos are provided.

SECOND: On February 24, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed was accepted for processing.

THIRD: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

On February 19 and 24, 2023, the following evidence was obtained:

1. Screenshot of a search on Google.com for the terms "XXXXXXXXXX" showing results related to videos of a fight concerning the domains tiktok.com, youtube.com, and twitter.com.

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2. A video named "Video downloaded Twitter ***VIDEO.1" where the fight is recorded, but the URL of its location is not provided.

3. Screenshot corresponding to a search on the platform tiktok.com for the term "XXXXXXXXXX" where several results related to the fight are shown.

On February 24, 2023, GOOGLE IRELAND LIMITED was ordered to remove the video located at ***URL.1.

On February 24, 2023, TWITTER INTERNATIONAL COMPANY was ordered to remove the video located at ***URL.2.

On February 24, 2023, META PLATFORMS IRELAND LIMITED was ordered to remove the video located at ***URL.3.

On March 14, 2023, it was verified that:

1. On the TikTok profile located at ***URL.4, there are no videos of the fight.

2. On the Instagram profile located at ***URL.5, there are no posts.

On April 5, 2023, it was verified that:

1. At the URL ***URL.6, the video of the fight is present.

2. At the URL ***URL.7, no video is present. Instead, the text "This video has been removed because it violated YouTube's Community Guidelines" is displayed.

On April 12, 2023, it was verified that:

1. At the URL ***URL.8, there are no longer videos of the fight.

On April 13, 2023, it was verified that:

1. Performing a search on the TikTok platform for the term "XXXXXXXXXX" yields some results related to the fight. In these videos, a sequence of two minors in the context of the fight is shown, but the fight itself is not visible. In one of the videos, it is indicated that the video is found on the Instagram profile "***PROFILE.1". In other videos, the text "the complete video on insta XXXXXXXXXXXX" is present.

2. That on the Instagram profile located at [instagram.com/its.abde/](https://www.instagram.com/its.abde/) it states "This account is private. Follow it to see its photos or videos," there is one post, and the account has 1362 followers. The posting of the video on this account could not be verified.

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3.

In the Instagram profile located at ***PROFILE.2, it states, "This account is private. Follow it to see its photos or videos," and it shows "0 posts."

On June 22, 2023, a request for information was sent to TWITTER INTERNATIONAL UNLIMITED COMPANY via international postal mail. The notification is marked as "Delivered" on June 29, 2023. No response has been received.

On November 2, 2023, collaboration was requested from the Irish authority through the cooperation procedure ***PROCEDURE.1. No response has been received from the Irish authority.

LEGAL GROUNDS

I

Competence

According to the functions conferred to each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Consent of Minors

In the terms indicated in Article 7.2 of the LOPDGDD, "The processing of data of minors under fourteen years of age, based on consent, shall only be lawful if the consent of the holder of parental authority or guardianship is obtained, to the extent determined by the holders of parental authority or guardianship."

III

Legitimacy for Processing

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation.

Article 4.2 of the GDPR defines "processing" as: "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment, combination, restriction, erasure or destruction."

Including images that identify or make a person identifiable, as well as their name, in published videos

constitutes processing of personal data and, therefore, the person doing so must rely on one of the legitimizing grounds indicated in Article 6 of the GDPR. In these cases, as in the case subject to complaint, the usual legitimizing ground is generally consent. It is the person who uploads the personal data and images that can be viewed without any limitation who must demonstrate that they have that consent.

For such processing to be carried out lawfully, the provisions of Article 6.1 of the GDPR must be fulfilled, which states:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in paragraph f) shall not apply to processing carried out by public authorities in the performance of their tasks."

IV

Conclusion

To identify the person or persons who were publishing the images, preliminary investigative actions were carried out, as established by Article 67 of the LOPDGDD, which states the following:

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"1. Before the adoption of the agreement to initiate proceedings, and once the claim has been admitted for processing, if applicable, the Spanish Agency for Data Protection may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances that justify the processing of the procedure.

The Spanish Agency for Data Protection shall act in any case when it is necessary to investigate treatments involving massive traffic of personal data.

2. The preliminary investigative actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and may not exceed a duration of twelve months from the date of the admission agreement or from the date of the agreement deciding its initiation when the Spanish Agency for Data Protection acts on its own initiative or as a result of communication sent to it by the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law."

After conducting the investigations mentioned in the Facts, the following has been concluded:

At the time the claim was presented, the contents, from which the removal was requested from INSTAGRAM, TWITTER, and YOUTUBE, were available. Subsequently, the removal of the reported contents has been confirmed.

After conducting searches on the TIKTOK platform, fragments of the video of the fight were found where the two minors are visible in the context of the fight but where the fight itself is not visible.

After making a request for information to TWITTER INTERNATIONAL COMPANY requesting the IP address of the user responsible for the publication, this company has not responded. Consequently, it is not possible to identify the person responsible for the publication.

Thus, as it has not been possible to attribute responsibility for the processing in the publication of the images, in accordance with what has been indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to the claiming party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

Mar España Martí

Director of the Spanish Agency for Data Protection

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